

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 69

AFFAIRE LOSINGER & C^{ie}, S. A.

(DÉSISTEMENT)

ORDONNANCE DU 14 DÉCEMBRE 1936

1936

ORDER OF DECEMBER 14th, 1936

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 69

THE LOSINGER & Co. CASE

(DISCONTINUANCE)

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF

LEYDEN
A. W. SIJTHOFF'S
PUBLISHING COMPANY

PERMANENT COURT OF INTERNATIONAL JUSTICE

ORDER MADE ON DECEMBER 14th, 1936.

1936.
December 14th.
General List :
Nos. 64 and 67

JUDICIAL YEAR 1936.

[*Translation.*]

THE LOSINGER & Co. CASE
(DISCONTINUANCE)

Present : Sir CECIL HURST, *President* ; M. GUERRERO, *Vice-President* ; Count ROSTWOROWSKI, MM. FROMAGEOT, DE BUSTAMANTE, ALTAMIRA, ANZILOTTI, NEGULESCO, Jhr. VAN EYSINGA, MM. NAGAOKA, HUDSON, HAMMARSKJÖLD, *Judges*.

The Permanent Court of International Justice,

composed as above,
after deliberation,

having regard to Article 48 of the Statute of the Court,
having regard to Article 68 of the Rules of Court,

Makes the following Order :

Having regard to the Application filed in the Registry of the Court on November 23rd, 1935, whereby the Swiss Confederation, relying upon the declarations made by Switzerland and by Yugoslavia accepting the Optional Clause in Article 36, paragraph 2, of the Court's Statute, instituted before the Court proceedings against the Kingdom of Yugoslavia, asking the Court for judgment to the effect that the Yugoslav Government could not claim release from the terms of an arbitration clause in a contract concluded between it and the Swiss *Société anonyme Losinger & Cie*, by adducing legislation subsequent in date to that contract ;

Having regard to the appointment of M. Georges Sausser-Hall, Professor of law at the University of Geneva, as Agent for the Swiss Government, and of M. Slavko Stoykovitch, Agent-General of the Yugoslav Government before the Mixed Arbitral Tribunals, as Agent for the Yugoslav Government ;

Having regard to the preliminary objection filed with the Registry of the Court on March 27th, 1936, whereby the Yugoslav Government prayed the Court to declare that it had no jurisdiction to adjudicate upon the dispute submitted by the Swiss Federal Council under Article 36 of the Statute and, alternatively, to declare that the application of the Swiss Federal Council could not be entertained because the means of obtaining redress placed at the disposal of the firm Losinger & Co. by Yugoslav municipal law had not been exhausted ;

Having regard to the Order of June 27th, 1936¹, whereby the Court joined the objection to the merits of the case, in order that it might adjudicate in one and the same judgment upon this objection and, if need be, on the merits, and fixed the time-limits for the filing of the subsequent documents on the merits, viz.: for the Counter-Memorial of the Yugoslav Government, August 3rd, 1936, for the Reply of the Swiss Government, August 21st, 1936, and for the Rejoinder of the Yugoslav Government, September 11th, 1936 ;

Having regard to the filing of the Counter-Memorial of the Yugoslav Government by the date fixed ;

Having regard to the letter dated August 7th, 1936, and filed in the Registry on August 10th, in which the Agent for the Swiss Government, invoking the Order of June 27th, 1936, in the recitals of which it was stated that the time-limits had been fixed "without prejudice to any modifications which it might seem desirable to make, in case the Parties should enter into negotiations for an amicable settlement", asked for an extension of the time-limit for the filing of the Reply until October 15th, 1936, in view of negotiations in progress between the Kingdom of Yugoslavia and the firm Losinger & Co. ;

Having regard to the Order of August 11th, 1936, whereby the acting President of the Court, in compliance with this request, extended until October 15th, 1936, the time-limit for the filing of the Reply by the Swiss Government and extended the time-limit for the filing of the Rejoinder by the Yugoslav Government, leaving the date by which that document was to be filed to be fixed by a subsequent order ;

Having regard to the Order of October 6th, 1936, whereby, in response to a further request from the Agent for the Swiss Government based on the stage reached in the negotiations referred to in the letter of August 7th, 1936, the President of

¹ *Publications of the Court*, Series A./B., Fasc. No. 67.

the Court extended until December 1st, 1936, the time-limit last fixed for the filing of the Reply ;

Whereas, by a letter of November 23rd, 1936, which was filed in the Registry on November 25th, the Agent for the Yugoslav Government, stating that a definite agreement had been reached between the Swiss Federal Government and the Yugoslav Government to discontinue the proceedings instituted by the application of the Federal Government in regard to the case of Losinger & Co., gave notice, in accordance with Article 68 of the Rules of Court, that the two Parties were not going on with these proceedings and requested the Court officially to record the conclusion of the settlement ;

Whereas a copy of this communication was duly transmitted to the Agent for the Swiss Government ;

Whereas, by a letter of November 27th, 1936, filed in the Registry on November 30th, the Agent for the Swiss Government, stating that the Yugoslav Government and the Swiss Federal Council had definitely agreed to discontinue the proceedings instituted by the application of the Swiss Confederation, gave notice, under Article 68 of the Rules of Court, of the agreement thus reached between the two Governments, and requested the Court to make an order officially recording the conclusion of the settlement ;

Whereas a copy of this communication was duly transmitted to the Agent for the Yugoslav Government ;

Whereas, under Article 68 of the Rules, if at any time before judgment has been delivered, the parties by mutual agreement inform the Court in writing that they are not going on with the proceedings, the Court will make an order officially recording the discontinuance of the proceedings and prescribing the removal of the case from the list ;

THE COURT

places on record the communications from the Agent for the Swiss Government and from the Agent for the Yugoslav Government filed on November 30th, 1936, and November 25th, 1936, respectively, to the effect that the Swiss and Yugoslav Governments are discontinuing the proceedings instituted by the application presented by the Swiss Confederation on November 23rd, 1935 ;

and orders that the case shall be removed from the Court's list.

Done at the Peace Palace, The Hague, this fourteenth day of December, one thousand nine hundred and thirty-six, in three copies, of which one will be filed in the archives of the Court and the others will be transmitted respectively to the Swiss and Yugoslav Governments.

(Signed) CECIL J. B. HURST,
President.

(Signed) J. JORSTAD,
Deputy-Registrar.
